



File No.: EXP202302143

RESOLUTION ON THE ARCHIVING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On January 12, 2023, a complaint was filed, with entry registration number REGAGE23e00002228872, before the Spanish Agency for Data Protection against the CITY COUNCIL OF SAN CRISTÓBAL DE LA LAGUNA, with NIF P3802300H (hereinafter, the complained party). The reasons for the complaint are as follows:

On November 23, 2022, the complaining party filed a report of workplace harassment against a colleague.

According to the complaint, during the processing of the aforementioned report, the Operational Procedure for the Prevention and Action in cases of workplace harassment was not followed, as the confidentiality of their identity was not guaranteed. In this regard, it is stated that the established protocol determines that the complaint must be submitted in a sealed envelope to ensure maximum confidentiality, addressed to the Occupational Risk Prevention Unit and submitted to the Human Resources Department, which will initiate the file and be responsible for safeguarding it.

However, it is stated that not only was the protocol not respected, but the envelope was opened and delivered to ***POSITION.1, who even urged them to withdraw the complaint.

The complaining party indicates that they have an audio recording of that conversation and that another colleague is a witness to all the events. Furthermore, it is noted that all employees of the complained party are aware of the existence of the labor dispute, causing them serious moral and psychological harm.

Along with the complaint, they provide the report submitted to the City Council along with the proof of entry registration, dated November 23, 2022.

They also provide the Operational Procedure for the Prevention and Action in cases of workplace harassment of the City Council, dated May 15, 2010.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

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The transfer, which was carried out in accordance with the provisions established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) through electronic notification, was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of art. 43.2 of the LPACAP, on March 6, 2023, as stated in the certificate in the file.

Although the notification was validly carried out by electronic means, considering the procedure completed in accordance with the provisions of article 41.5 of the LPACAP, an informational copy was sent by postal mail, which was duly notified on March 15, 2023. In this notification, the obligation to communicate electronically with the Administration was reminded, and information was provided on the means of access to such notifications, reiterating that, henceforth, notifications would be made exclusively by electronic means.

No response has been received to this transfer document.

THIRD: On April 12, 2023, in accordance with article 65 of the LOPDGDD, the admission of the complaint for processing was communicated.

FOURTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in article 57.1 and the powers granted in article 58.1 of the GDPR, and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD.

FIFTH: On July 19, 2024, the Director of the Spanish Agency for Data Protection resolved to declare the expiration of the preliminary investigative actions since more than twelve months had elapsed from the date of admission of the complaint for processing, without the initiation agreement of the sanctioning procedure having been issued and notified, and to open new investigative actions, incorporating the documentation that makes up the preliminary actions that are declared expired.

SIXTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in article 57.1 and the powers granted in article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

In the operational procedure of the City Council of San Cristóbal de la Laguna for the prevention and action regarding workplace harassment of the City Council, dated 05/15/2010, provided by the complainant, it is stated that a Workplace Harassment Mediation Commission will be created and that the mediation phase will begin with the complaint letter. It specifies that the complaint must be submitted in a sealed envelope to ensure maximum confidentiality, addressed to the Occupational Risk Prevention Unit, and will be submitted to the Human Resources Department. The HR Department will initiate the file and will also be responsible for safeguarding the same. It is also stated that the Workplace Harassment Mediation Commission will be summoned to initiate the appropriate actions. During the course of the investigative actions, both the complainant and the respondent were requested, but neither of them submitted any response.

LEGAL GROUNDS

I

Competence

In accordance with the functions that article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) assigns to each control authority and as provided in articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Principles relating to processing

Letter f) of article 5.1 of the GDPR advocates:

"1. Personal data shall be:

(...)

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction or damage, by applying appropriate technical or organizational measures ('integrity and confidentiality')."

III

Security of processing

Article 32 of the GDPR stipulates the following:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context and purposes of the processing, as well as the varying risks of probability and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

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- a) the pseudonymization and encryption of personal data;
- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
- c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;
- d) a process for regular verification, evaluation, and assessment of the effectiveness of technical and organizational measures to ensure the security of processing.

2. In assessing the adequacy of the level of security, particular consideration shall be given to the risks presented by the processing of data, especially as a consequence of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data may only process such data on instructions from the controller, unless required to do so by Union or Member State law.

IV

Conclusion

In the present case, a claim is made against the City Council of San Cristóbal de La Laguna, as the claimant submitted a complaint of workplace harassment to the City Council and it did not guarantee the confidentiality of their identity since the provisions of the operational procedure for the prevention and action in cases of workplace harassment were not followed during the processing of said complaint. As the only evidence, the claimant provides the complaint submitted to the City Council along with the registration receipt dated November 23, 2022, and the Operational Procedure for the Prevention and Action in Cases of Workplace Harassment of the City Council, dated May 15, 2010, without providing any evidence regarding the facts that motivate the claim made before this AEPD.

However, the investigative actions carried out have not allowed for the verification of what was stated by the claimant, as they did not respond to the request from the Inspection in which they were asked for the recording of the conversation held with the ***POSITION.1, so the mere presentation of these documents is not sufficient evidence to undermine the right to the presumption of innocence of the respondent.

On the other hand, the claimant states in their complaint that the protocol established by the respondent for cases of complaints of workplace harassment ("Operational Procedure for the Prevention and Action in Cases of Workplace Harassment") was not respected.

laboral"), specifically regarding the submission of the complaint to the HR Department, in a sealed envelope addressed to the Occupational Risk Prevention Unit.

However, the claimant does not take into account that this provision is directed at the complainant themselves. In that "Procedure," it is established that any employee of the claimant who suffers a situation of harassment must submit their complaint in writing according to the standardized model, with the complainant themselves being the one who must present it "in a sealed envelope to ensure

maximum confidentiality, addressed to the Occupational Risk Prevention Unit, and will submit it to the HR Department."

At this point, it is necessary to indicate that the responding party has also not answered any of the requests made.

To Administrative Sanctioning Law, due to its specialty, the guiding principles of criminal law apply, with some nuances, but without exceptions, resulting in the clear full validity of the principle of presumption of innocence.

As the Constitutional Court has repeatedly stated, "the presumption of innocence applies without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanctions, whether criminal or administrative, since the exercise of *ius puniendi* in its various manifestations is conditioned by Article 24.2 of the Constitution to the play of evidence and to an adversarial procedure in which the parties can defend their positions." (Judgment No. 74/2004, of April 22, from the Second Chamber of the Constitutional Court).

In this sense, the Constitutional Court, in Judgment 76/1990, considers that the right to the presumption of innocence entails "that the sanction must be based on acts or incriminating evidence of the reproached conduct; that the burden of proof corresponds to the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the result of the evidence presented, freely assessed by the sanctioning body, must result in an acquittal."

The Judgment of the Constitutional Court of 20/02/1989 indicates that "Our doctrine and criminal jurisprudence have maintained that, although both can be considered as manifestations of a generic *favor rei*, there is a substantial difference between the right to the presumption of innocence, which unfolds its effectiveness when there is an absolute lack of evidence or when the evidence presented does not meet procedural guarantees, and the jurisprudential principle in *dubio pro reo*, which belongs to the moment of the assessment or appreciation of evidence, and which must be judged when that indispensable evidentiary activity occurs, there is a rational doubt about the real concurrence of the objective and subjective elements that integrate the criminal type in question."

In short, those principles prevent imputing an administrative infraction when no incriminating evidence has been obtained and accredited regarding the facts that motivate this accusation or the involvement of the alleged infringer in them, applying the principle "in *dubio pro reo*" in case of doubt regarding a specific and determining fact, which obliges, in any case, to resolve that doubt in the most favorable way for the interested party.

Consequently, in light of the documentation in the file and in accordance with what is indicated in the previous paragraphs, it is appropriate to archive the present proceedings, as no breach of data protection regulations has been observed, since the established facts do not evidence conduct that falls under the infractions provided for and sanctioned in the GDPR.

Therefore, based on what is indicated in the previous paragraphs, no evidence has been found that substantiates the existence of an infraction within the jurisdiction of the Spanish Agency for Data Protection.

All of this is without prejudice to any possible subsequent actions that this Agency may carry out, exercising the investigative and corrective powers it holds.

Thus, in accordance with what has been indicated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to the TOWN HALL OF SAN CRISTÓBAL DE LA LAGUNA and to the claimant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative

Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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